

21STCV21293 21STCV21293

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Case Number: 21STCV21293 Hearing Date: August 11, 2026 Dept: F47

Dept. F47

Date: 8/11/26

Case #21STCV21293

PETITION FOR EXPEDITED

APPROVAL OF COMPROMISE OF CLAIM OR ACTION OF PERSON WITH A DISABILITY

Petition filed on 6/23/26.

RULING: The petition is denied.

On 6/7/21, Plaintiff Phyllis R. Ginolfi, by and through her Conservator, Christin C. Solis (Decedent), filed this action against various defendants alleging causes of action for dependent adult/elder abuse and negligence. The matter settled in late 2024/early 2025. Thereafter, on 3/9/25, Decedent died.

On 10/3/25, pursuant to stipulation and court order, a First Amended Complaint was filed substituting the Estate of Phyllis Ginolfi, Deceased, By and Through Joe Ginolfi [Decedent's brother] as the Successor-In-Interest to the Estate of Phyllis Ginolfi (the Estate) as the plaintiff and adding Joan Adams, Decedent's sister, as a nominal defendant. There is no indication in the Court file that the First Amended Complaint was served on nominal defendant Joan Adams at or around the time the First Amended Complaint was filed.

On 3/4/26, the Court dismissed the action without prejudice pursuant to CCP 664.6.

On 6/23/26, the Estate filed the instant Petition for Expedited Approval of Compromise of Claim or Action of Person With a Disability. The proof of service attached to the petition indicated that on 6/12/26, the petition was electronically served on counsel for defendants and mailed to Joan Adams via first-class mail. As noted above, there is no evidence that Joan Adams was ever properly served with the First Amended Complaint before the instant petition was filed and she has never appeared in this action. Therefore, there was no way for the Court to confirm her address. Based on the foregoing and other reasons, the Court intended to deny the petition. Therefore, a hearing was scheduled pursuant to CRC 7.950.5(c)(3). (See 6/29/26 Minute Order).

In its 6/29/26 ruling, the Court noted the following issues which Plaintiff's counsel claims to have addressed in a Response filed on 7/16/26.

First, with regard to serving Joan Adams with the summons and complaint and the instant petition, the Response indicates that a proof of personal service would be filed before the hearing. On 8/5/26, a proof of service was filed indicating that Joan Adams was served with the First Amended Complaint and documents related to the instant petition and hearing thereon via substituted service on 7/29/26. (See 8/5/26 Proof of Service). There is no indication that any efforts to personally serve Joan Adams were made before substituted service was made. See CCP 415.20(b). Additionally, it has only been 12 days since the purported substituted service was made which did not provide Joan Adams with sufficient time to respond before the hearing on this petition.

If an heir refuses to participate in an action as a plaintiff, he or she may be named as a nominal defendant so that all heirs are before the court in the same action. See

Hall (2003) 108 CA4th 706, 715 citing Ruttenberg (1997) 53 CA4th 801. An heir who was not named as a party and served with the summons and complaint has a claim for damages against the heirs who failed to join him or her. Id. As such, it is necessary to ensure that Joan Adams was properly served with the summons and First Amended Complaint in this action.

Based on the foregoing, Plaintiff has still failed to establish that Joan Adams was properly served with the summons and First Amended Complaint in this matter as required.

Second, the Court noted that it was not clear that the petition qualifies for expedited approval. No.3.g.(2) in the petition has been marked indicating that:

“The settlement described in item 11 represents payment of the single-person policy limits of all liability insurance policies covering the defendants named in that item. The investigation described in Attachment 3 shows that all of those defendants are judgment-proof outside of their insurance coverage. (Describe investigation and results in Attachment 3.)” (italics in original)

The Court noted that Attachment 3 does not describe an investigation and results regarding the settling defendants being judgment proof outside their insurance coverage.

The Response filed by Plaintiff’s counsel fails to address this issue. As such, it does not appear that the compromise qualifies for expedited approval. (See Petition, No.3.g(2)); CRC 7.950.5(a)(8).

Third, the Court also noted that nothing has been marked in No.19 regarding disposition of the balance of the settlement proceeds. Instead, in No.20, a request is made that:

“1. Defendant HDL, Inc. dba Pacoima Adult Daycare/its insurance company pay the sum of \$100,000 00 to Law Office of Steven C Gambardella in care and trust for payment to Medicare for its lien payment, and for attorney’s fees and costs.

2. Defendant Right Choice In-Home Care. Inc., its insurer pay the sum of \$100,000.00 to the Law Office of Steven C. Gambardella for fees, costs and distribution to Joe Ginolfi as

successor-in-Interest to the Estate of Phyllis Ginolfi. Deceased; and,

3. Defendant Keolis Transit

America, Inc. pay the sum of \$25,000.00 to the Law Office of Steven C. Gambardella for distribution to and distribution to Joe Ginolfi as successor-in-interest to the Estate of Phyllis Ginolfi, Deceased.”

The Response fails to adequately explain why/how it is proper to ignore No.19 in the petition.

Fourth, the Court also noted that the proposed order leaves Nos. 8 and 9 blank regarding disbursement of the \$67,549.30 balance of the settlement proceeds after payment of attorney fees, costs and expenses. Instead, in No.13 of the proposed Order regarding “Additional Orders,” the following “additional orders” are set forth:

“Right Choice In-Home Care, Inc./its insurer to pay the sum of \$100,000.00 by check to Law Office of Steven C Gambardella

HDL, Inc. dba Pacoima Adult Day Care/its insurer to pay the sum of \$100,000.00 by check to Law Office of Steven C Gambardella

Keolis Transit America, Inc./its insurer to pay the sum of \$25,000.00 by check to Law Office of Steven C Gambardella”

The Court noted that it would seem that any settlement checks should be made payable to Plaintiff’s attorney and the Estate or at least on behalf of the Estate to ensure that the remaining medical expenses are paid and the Estate receives the remaining funds, after all fees and expenses are deducted. Instead of providing authority indicating that the proposed procedure is proper and/or why making the checks payable solely to the Law Office of Steven C Gambardella, instead of jointly to the client and the law office which is the usual common practice, is the better procedure, the Response states that Plaintiff’s counsel “will obviously comply and pay all amounts requested from this attorney’s IOTLA account; what further verification could and would be required; this is standard procedure for any law firm in compliance with the California State Bar CTEP reporting requirements and representations to this Court.”

Fifth, the Court also noted that it was not clear that the Estate is exempt from probate requirements as claimed in Attachment 3 to the petition wherein it states, in part:

“In order to qualify for this streamlined procedure for both an expedited determination of this Petition, and to avail the Estate of the proceeds of settlement as provided by Probate Code §§13100-13104, it is declared that the fair market value of the Estate, after reduction for the Medicare lien, attorney's costs and fees, is less than the \$184,500.00 to qualify for the distribution of the proceeds of settlement to the Successor-in-Interest, Mr. Ginolfi. The net proceeds to the Estate is the sum of \$67,549.30, after the Medicare lien, attorney's costs and fees are paid.”

The Court noted that Probate Code 13100 provides:

“Excluding the property described in Section 13050 and any property included in a petition filed under Section 13151, if the gross value of the decedent's real and personal property in this state does not exceed one hundred sixty-six thousand two hundred fifty dollars (\$166,250), as adjusted periodically in accordance with Section 890, and if 40 days have elapsed since the death of the decedent, the successor of the decedent may, without procuring letters of administration or awaiting probate of the will, do any of the following with respect to one or more particular items of property:

(a) Collect any particular item of property that is money due the decedent.

(b) Receive any particular item of property that is tangible personal property of the decedent.”

(c) Have any particular item of property that is evidence of a debt, obligation, interest, right, security, or chose in action belonging to the decedent transferred, whether or not secured by a lien on real property.

(emphasis added)

The Court noted that the total settlement is \$225,000.00 which is the amount that would be collected on behalf of the Estate and then distributed for payment of medical expenses, attorney fees and costs. The Court further noted that the petition fails to explain and/or provide authority for the proposition that the net value of the settlement after such payments, rather than the gross value of same, may be used to avoid having to comply with probate requirements.

In the Response, Plaintiff's counsel concedes that the procedure/approval requested is "a deviation from pro forma Probate rules concerning the amounts of the gross settlement" and claims that the reason for the deviation is "to avoid duplicative and unnecessary probate proceedings." (See also Gambardella Decl. ¶4). However, Plaintiff has failed to provide authority for this deviation other than it would be "equitable" so that the Estate can avoid additional expenses of a "full Probate review of the distribution." (See Gambardella Decl. ¶4).

Based on the foregoing, the petition for expedited approval is denied without prejudice to Plaintiff filing and serving a standard petition for approval after the summons and First Amended Complaint are properly served on nominal Defendant Joan Adams and the time for Adams to respond thereto has expired.